

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, MAY 26, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**AVILA v. SANCHEZ, ET AL.
Case No. CU25-02275**

Motion to Compel Further Responses to Form Interrogatories and to Compel Answer or Production

TENTATIVE RULING

Defendants' motion to compel further responses to form interrogatory 17.1 and to compel production of handwriting exemplars at deposition is denied without prejudice.

Defendants have failed to file a separate statement "that provides all the information necessary to understand each discovery request and all the responses to it that are at issue" and is "full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court, rule 3.1345(c).) A separate statement is required for any motion involving the content of a discovery request or the responses to a request, including motions to compel further responses to interrogatories, to compel answers at a deposition, and to compel the production of documents or tangible things at a deposition. (Cal. Rules of Court, rule 3.1345, subds. (a)(2), (a)(4)-(a)(5).) The court may deny a motion to compel further responses to discovery for a party's failure to file a satisfactory separate statement. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Additionally, Defendants' meet and confer declaration does not "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented"

(Code Civ. Proc. § 2016.040) and fails to establish that counsel engaged in a “serious effort at negotiation and informal resolution” that amounted to a sufficient “attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294; *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) Rather than engaging in a meaningful attempt to informally resolve the discovery disputes, defense counsel sent a single meet and confer letter upon receiving responses to form interrogatories from Cross-defendant Serrano and a single meet and confer letter after Cross-defendants refused to provide handwriting exemplars at their deposition. (Decl. of Garfield, ¶¶ 4, 7, 16-20.) Although defense counsel claims to have sent a follow-up email regarding the responses to form interrogatories on March 18, 2026, that email referred only to responses to requests for documents and the failure of Plaintiff to serve responses to form interrogatories. (*Id.* at Exh. E.) Plaintiff apparently served her responses to the form interrogatories on March 18, but there is no indication that Defendants attempted to meet and confer regarding any deficiencies with those responses. (*Id.* at ¶ 4.) After Cross-defendants refused to provide handwriting exemplars during their depositions, defense counsel sent a single meet and confer letter and there is no indication that he ever followed up or attempted to contact opposing counsel in any other way. (*Id.* at ¶¶ 21-22.) The parties have not discussed or deliberated on the discovery dispute.

The parties are directed to actually meet and confer, in person, by telephone or by videoconference, to compare their views, consult and deliberate. If the parties are still unable to informally resolve any part of the dispute, Defendants may file a subsequent motion to compel further responses within 45 days of the date of the hearing or any later date agreed upon by the parties. The motion shall be accompanied by a meet and confer declaration that fully demonstrates “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. § 2016.040.)

No monetary sanctions are awarded at this time.

EDWARDS, et al. v. FUNG, et al.
Case No. cu25-08969

- (1) Demurrer; and
- (2) (Renewed) Motion by Defendant THETA S.H. FUNG to Compel Discovery

TENTATIVE RULING

On the demurrer:

C.C.P. §430.10(e) authorizes a demurrer to be filed when “The pleading does not state facts sufficient to constitute a cause of action.”

In general, a complaint must contain “charging allegations”—allegations against each defendant charging them with some wrongful act. 1 Edmon & Karnow [Weil & Brown],